

 Guardian Group Guardian Life of The Caribbean Limited	Client Number		
	Policy Number 1		
	Policy Number 2		
	Policy Number 3		
	Agent Number		
	Branch Number		

This declaration is made in respect of Electronic Application Number

DECLARATION 2 – IN THIS DECLARATION THE PROPOSED POLICYOWNER (PROPOSER) IS NOT THE PROPOSED ANNUITANT AND/OR THE PROPOSED LIFE ASSURED PROPOSED ANNUITANT and/or PROPOSED LIFE ASSURED

First Name			
Surname			
Date of Birth (dd/mm/yyyy)			

PROPOSER / PARENT OR LEGAL GUARDIAN (where the Proposed Life Assured/Annuitant is less than 16 years old)

First Name			
Surname / Legal Entity Name			
Date of Birth or Date of Incorporation (dd/mm/yyyy)			

2. A. GENERAL

We, the above mentioned **Proposer** and **Proposed Annuitant** and / or **Proposed Life Assured** AGREE AND CONFIRM THAT we have today initiated the electronic application (“**the Application**”) as indicated above to Guardian Life of the Caribbean Limited (“**the Company**”) for the Plan/s of Insurance (“**the Policy/ies**”) included in the Application.

We understand and acknowledge that the **Proposed Life Assured** is not eligible for any type of life insurance coverage if he or she has been made aware of or has been advised by a licensed physician that he or she suffers from an affliction/illness that puts him or her at the risk of death within twelve months from the date of the Application.

We also understand and acknowledge that the **Proposed Life Assured** will not be granted temporary conditional insurance cover if he or she has been involved in any criminal activities or he or she has been charged or convicted of any criminal offence.

We hereby confirm in respect of the application (and if more than one plan/policy is applied for separately in respect of each plan/policy as if a separate application had been completed for each plan/policy applied for therein) that:

(i) We were present during the completion of the Application and had the opportunity to review and verify the accuracy of the reproduction of our responses to the questions therein and confirm that the answers recorded therein are the answers supplied by us and are all true and correct;

(ii) We have received the Company’s brochure in respect of any investment linked plan/policy applied for by us in the application which properly describes the said plan/policy and we understand that the growth rates and cash values are not guaranteed except to the extent specifically stated in the brochure; and

(iii) We understand that the projected fund values provided under the Policy Illustration in respect of any plan/policy applied for by us in the application are not guaranteed except to the extent specifically stated therein and that all other projected fund values are for illustrative purposes only and that, except to the extent specifically stated in the Policy Illustration, actual returns will depend on future fund performance which is subject to market conditions and as such may fluctuate.

We authorize the Company to disclose the information provided by us in the application to regulatory and law enforcement authorities if required to do so by any Act, Rules or Regulations under the laws of Trinidad and Tobago or other applicable law.

2. B. DECLARATION IN RESPECT OF APPLICATION FOR DEFERRED ANNUITY APPLICATIONS

- 1) We the above mentioned **Proposer** and **Proposed Annuitant** acknowledge that with respect to any application for Approved Deferred Annuity Plans/Policies registered with the Board of Inland Revenue, the provisions of the Income Tax Act of Trinidad and Tobago apply as follows:
- (i) The Policy/ies cannot in whole or in part be surrendered, commuted or assigned by us, other than in the manner provided in the Income Tax Act;
- (ii) No loans may be obtained on the security of the Policy/ies.
- 2) We acknowledge that with respect to any application for Approved Deferred Annuity Plans/Policies registered with the Board of Inland Revenue that:
- (i) No benefit is payable after the Annuity Vesting Date except by way of annuity/pension payment to the Annuitant for his or her life, or, in the event of his or her death before expiry of the guaranteed period, to his or her beneficiary/trustee/legal personal representative, for the remainder of the guarantee period;
- (ii) The Annuity Vesting Date shall not be earlier than the date the Annuitant attains fifty (50) years of age;
- (iii) All benefits, other than a refund of premiums at death or a lump sum equivalent to the capitalized value of 25% of the Annuity, shall be deemed to be income of the Annuitant; and
- (iv) Any amount payable by way of a refund of premiums will be subjected to a deduction of tax (at the rate stipulated in law and applicable at that time) which shall be paid to the Commissioner of Inland Revenue.
- 3) We acknowledge that with respect to any application for Deferred Annuity Plans/Policies not registered with the Board of Inland Revenue that:
- (i) No loans may be obtained on the security of the Policy/ies
- (ii) No benefit is payable after the Annuity Vesting Date except by way of annuity/pension payment to me for my life, or, in the event of my death before expiry of the guaranteed period, to my beneficiary/trustee/legal personal representative, for the remainder of the guarantee period;
- (iii) The Annuity Vesting Date shall be any time after the minimum required policy duration

2. C. DECLARATION IN RESPECT OF APPLICATION FOR LIFE INSURANCE COVERAGE AND/OR WAIVER OF PREMIUM BENEFITS AND/OR ACCIDENTAL DEATH BENEFITS AND/OR DISABLEMENT BENEFITS

- 1) In respect of any application(s) for life insurance coverage, and/or waiver of premium benefit, and/or accidental death benefit, and/or disablement benefit we the **Proposer** and the **Proposed Life Assured** and/or **Proposed Annuitant** acknowledge and agree that:
 - (i) the Company requires further information from us to determine whether it will accept the Application and if so whether it will accept it at the premium provided (which process is referred to as “**Underwriting the Application**”).
 - (ii) the Application shall not be complete until (a) all such further information has been provided to the Company; and (b) we have completed the electronic application and medical examination and tests as required by the Company; and (c) verification of the information provided by us in the Application is made by signing and returning to the Company the transcript of the Application.
- 2) We acknowledge that the Company may also request a medical examination of the **Proposed Life Assured** and/or **Proposed Annuitant** or that the **Proposed Life Assured** and/or **Proposed Annuitant** may undergo medical tests for this purpose. We are aware that the **Proposed Life Assured** and/or **Proposed Annuitant** may refuse to participate in any such medical examination or undergo any such tests as may be required by the Company in which case we acknowledge that the Application will be cancelled.
- 3) We consent to participating in an interview and consent to the Company (whether before or after the death of the **Proposed Life Assured** and/or **Proposed Annuitant**) seeking whatever information it requires for the purpose of Underwriting the Application or investigating any claim in respect of insurance provided as a result of the Application (including, without prejudice to the generality of the foregoing, findings on medical care, psychiatric or psychological care or examination, surgery, and medical tests relating to the **Proposed Life Assured** and/or **Proposed Annuitant**) from any and all sources (including, without prejudice to the generality of the foregoing, any medical practitioner who has ever attended to the **Proposed Life Assured** and/or **Proposed Annuitant**, any hospital, clinic, other medical or medically related facility or laboratory at or from which the **Proposed Life Assured** and/or **Proposed Annuitant** has received services, any insurance or reinsurance company to which an application for insurance on the life of the **Proposed Life Assured** and/or **Proposed Annuitant** has been submitted, any medical information bureau or similar organization to which information on the state of health or habits of the life of the **Proposed Life Assured** and/or **Proposed Annuitant** has been submitted, and any person or entity who has ever employed the **Proposed Life Assured** and/or **Proposed Annuitant**). We expressly give our permission for such information to be provided to the Company. We expressly give our permission for the Company to disclose all or any part of the information obtained by the authorizations contained in this Declaration to one or more of its affiliated companies, medical information bureau or similar organizations, its reinsurers or contractors who process transactions that concern any insurance coverage applied for or issued in respect of the life of the **Proposed Life Assured** and/or **Proposed Annuitant** by it or it's affiliates and also to other insurance companies or reinsurers to whom application may be made for insurance on the life of the **Proposed Life Assured** and/or **Proposed Annuitant** or to whom a claim for benefits under any insurance in respect of the life of the **Proposed Life Assured** and/or **Proposed Annuitant** may be submitted and we hereby agree that for this purpose a copy of this form will be as valid as the original.
- 4) In respect of any applications for Non-Smokers rates we confirm that the **Proposed Life Assured** and/or **Proposed Annuitant** has/have not smoked or consumed tobacco in any of its forms or any form of nicotine replacement during the last twelve months and that the **Proposed Life Assured** and/or **Proposed Annuitant** has/have no intention of doing so in the future. We acknowledge that if this statement is found to be untrue this will be construed as fraud on our part and the Company shall not be liable for payment of any benefit under any such policy of insurance issued in response to the Application irrespective of the length of time that such policy has been in force.
- 5) In making the Application we have not withheld, and in supplying any further information required by the Company we will not withhold, any material circumstances or information touching the past or present state of health or habits of the life of the **Proposed Life Assured** and/or **Proposed Annuitant**.
- 6) We agree that Temporary Conditional Insurance Cover (as evidenced by the copy of the Temporary Insurance Cover Agreement which has been received) is granted on the basis that all information provided in the application and assertions made in this and preceding declarations are true and correct.

[illegible]

that all Declarations made by us in respect of the parts indicated above regarding the truth and correctness of information supplied to the Company with respect to the Application together with our answers to the questions put to us in the Application (referred to as **“the Application Information”**) or by the Medical Examiner (if a medical examination is required for consideration of the Application) and the answers to any other questions addressed to us by the Company or its Medical Examiner with respect to the Application shall be the basis on which any Policy of Insurance is issued by the Company and that if any fraudulent, incorrect or untrue statement be made therein, or in any of them, all benefits and sums of money payable under any such policy or insurance shall be forfeited to the Company and the policy shall be void. We further agree that, notwithstanding our payment of the first total modal premium set out in the Application, the allocation of (a) a “Policy Number” or (b) references To the Proposer/Policyowner and the **Proposed Life Assured** and/or **Proposed Annuitant** as “the Policyowner” or “the Life Assured” and or “Annuitant” (which are allocations and references for convenience in processing the Application) the Company’s liability shall begin only on its official written acceptance of the completed Application which will be subject to our confirming the truth and correctness of the Application information by **signing and returning to the Company** the transcript of the Application provided that the health of the **Proposed Life Assured** and/or **Proposed Annuitant** remains meanwhile unaffected. We understand and agree that the policy may contain provisions limiting the amount payable under the policy to an amount less than the sum assured in the event of the death of the **Proposed Life Assured** and/or **Proposed Annuitant** occurring directly or indirectly from or through insurrection, invasion or war.

Date:

Date:

Date:

I hereby declare that I have explained the contents of this form to the Proposer and/or Proposed Life Assured/Proposed Annuitant and I have read out to the Proposer and/or Proposed Life Assured/Proposed Annuitant the answers to the questions dictated by the Proposer and/or the Proposed Life Assured/Proposed Annuitant and that the Proposer and/or Proposed Life Assured/Proposed Annuitant has/have affixed his/her/their thumb impression(s) to this form as noted above after fully understanding the contents thereof.

Expiry Date (dd/mm/yy)

APPLICATION FOR INSURANCE – IMPORTANT NOTES

These notes form a material part of the application for insurance and must be read and understood by the Proposer and the Proposed Life Assured and/or Proposed Annuitant before commencing with the completion of the Application Form and before any consideration is given to executing the Declaration.

The Proposer should make himself/herself familiar with terms and conditions and rules of the various plans of insurance which are available before completing the application either himself or through his agent.

The Proposer shall be responsible personally for the information inserted on the application form irrespective of whether it is filled in his own hand or through his agent.

1. Completion of Application

(i) This **application** is comprised of an Electronic Application Form and a Declaration Form. Note that a transcript of the electronic application form must be signed by the Proposer and returned to the Company before the Policy Contract takes effect. Additional information may be requested before a final decision is taken to settle a policy. A maximum of up to three plans/policies can be applied for on each application form. “Own Life Policies” and “Third Party Applications” are mutually exclusive and both types of policies cannot be applied for on a singular application.

Declaration Forms are signed by the Proposer and in cases where required by the Proposed Life Assured and/or the Proposed Annuitant, after the completion of the Application Form.

(ii) The **Declaration** is in two forms:

- (a) Declaration 1 – applies to applications in which the Proposer is the Proposed Life Assured/Proposed Annuitant and the Proposer is sixteen (16) years old or older. These are referred to as “Own Life Policies”.
- (b) Declaration 2 – applies to applications in which the Proposer is NOT the Proposed Life Assured /Proposed Annuitant. These are referred to as “Third Party Applications”. This Declaration is to be used in all applications where:
 - (i) A company or other legal entity is the Proposer; e.g. Tophat policies
 - (ii) the Proposed Life Assured or Proposed Annuitant is less than sixteen (16) years old
 - (iii) in all other cases where a third party (the Proposer) is applying for a plan, whether life or annuity for another person.

Note: *that minors who have attained the age of 10 years, but are less than 16 years old, may sign as the Proposed Life Assured/Proposed Annuitant on their own behalf.*

2. Customer Due Diligence-Prevention of Money Laundering and Countering the Financing of Terrorism

In accordance with laws that deal with money laundering and countering the financing of terrorism, it is necessary to obtain and verify information on the identity, address, occupation and source of income of any one who is a party to the application for insurance. This includes policyholders, premium payers, life assureds, annuitants and beneficiaries.

This will be carried out through a request for

- (i) sight of current original identification documents issued by a government authority (*note that where the Proposer is a legal person then original or certified documents of formation are required together with the verification of identity of every director and every shareholder who holds 10% or more of the paid up share capital*) ;
- (ii) sight of an original recent utility bill in the name of the Proposer which is not more than 6 months old or such other document which the Company deems to be acceptable in circumstances where a utility bill is not available.
- (iii) sight of documentary evidence of source of income/ wealth depending on the type, amount and frequency of transactions.

We are required to retain copies of these documents on our files and they form a material part of the application.

The company faces serious consequences under the law if this information is not obtained and therefore the inability of the Proposer and other connected persons to provide this information may result in the cancellation of the application.

3. Witnessing the signatures of Declarants

Agents cannot witness the signatures of any Proposer/Applicant/Declarant who is a relative of the Agent.

4. Witnessing the Mark/Thumb Impression of an Illiterate Proposer

Agents cannot attest to the mark/thumb impression of any Proposer/Applicant /Declarant who is illiterate.

This must be done in a separate declaration by someone who is literate, permanently resident in this jurisdiction, whose identity is established and recorded and who is unconnected with the Company in any way.

5. Non Acceptance of Application for Insurance

Where the Proposed Life Assured is aware of or has been advised by a licensed physician that he/she is suffering from any affliction/illness/condition which puts him/her at risk of death within the next twelve months, the Company will not accept and consider an application for insurance. In this circumstance the Proposed Life Assured should not proceed with the completion and submission of this application.

6. Provision of Temporary Insurance Cover

Where the proposed life assured has been involved in any criminal activities, or has been charged or convicted of any criminal offence then Temporary Insurance Cover will not be provided.

TEMPORARY CONDITIONAL INSURANCE AGREEMENT – FOR LIFE INSURANCE COVERAGE ONLY

In this Agreement “*the Declaration 2*” means the declaration signed in respect of the application for insurance (*the Application*) numbered in respect of which the Declaration was made. As regards the contents of the Application our records shall be conclusive evidence thereof. “*We*”, “*us*” and “*the Company*” means Guardian Life of the Caribbean Limited. “*Proposed Life Assured*” and “*Proposer*” refer to the persons identified as such above and “*you*” and “*your*” refer to the Proposed Life Assured and Proposer individually and collectively as may be appropriate.

IN CONSIDERATION of your payment of the first Modal Premium (“**First Modal Premium**”) (receipt whereof is acknowledged by our Receipt No: _____ (“**the Receipt**”) attached hereto and on the basis that all information provided in the Application is true and correct as well as assertions set out in the declaration form Guardian Life of the Caribbean Limited agrees to provide A LIMITED AMOUNT OF LIFE INSURANCE PROTECTION for A LIMITED PERIOD OF TIME for the Life Assured SUBJECT TO THE FOLLOWING TERMS AND CONDITIONS (referred to herein as the “**Temporary Conditional Insurance**”)

TERMS AND CONDITIONS

1. THE AGREEMENT FOR TEMPORARY CONDITIONAL INSURANCE SHALL BE OF NO EFFECT UNLESS;

- (i) all information provided on the Declaration and in the Electronic Application is true and correct; and
- (ii) the receipt for the first modal premium is attached to this Application

DATE COVERAGE BEGINS

2. The Temporary Conditional Insurance begins on the date that all the following conditions have been satisfied (“**the Effective Date**”):
- a. This Agreement is signed by you and us.
 - b. The Proposed Life Assured has provided a sample of his/her own oral fluid or blood for any required oral fluid or blood testing as set out in the request for same signed by YOU as at the date hereof.
 - c. The Proposer/Proposed Life Assured has completed the Electronic Application

CONDITION OF COVERAGE

3. The results of any HIV and Cocaine Tests on the sample/s provided by the Proposed Life Assured under 2b above must be negative.

AMOUNT AND CONDITION OF COVERAGE

4. If the Proposed Life Assured dies whilst the Temporary Conditional Insurance is in effect, subject to the Condition of Coverage specified in Clause 3, we will pay to the beneficiary/trustee/legal personal representative designated in the Application the lesser of (a) the Base Sum Assured applied for or (b) FIVE HUNDRED THOUSAND DOLLARS (TT\$500,000.00) which shall be the Maximum Amount payable by us in respect of all insurance applied for under any current applications to us and any other agreements with us for temporary insurance whether conditional or otherwise in respect of the Life Assured and still in effect.

DATE COVERAGE TERMINATES – 90 DAY MAXIMUM PERIOD

5. All insurance under this Agreement will terminate automatically on the earliest of:
- a. 30 days from the **Effective Date** of this Agreement if all the conditions specified in clauses 2b and 2c have not been satisfied.
 - b. 90 days from the **Effective Date**.
 - c. The date the policy applied for pursuant to the Application becomes effective.
 - d. The date we mail notice of termination of coverage to the Proposer at his/her mailing address specified in the Application.
 - e. The date the Proposer withdraws the Application.
6. At our sole discretion, we may terminate the Temporary Conditional Insurance at any time before a policy of insurance becomes effective.

SPECIAL LIMITATIONS

- 7.
- a. This Temporary Conditional Insurance covers death of the Life Assured only and does not provide any benefits for Critical Illness or Disability.
 - b. Our liability shall be limited to a refund of any premiums paid pursuant to the Application if:
 - (i) The assertions made with respect to the risk of death within the next 12 months and with respect to Criminal Activities and Charges set out in the Part 1.A of the Declaration are found to be untrue; or
 - (ii) The answers to the Electronic Application (Interview) are found to be untrue; or
 - (iii) The Proposed Life Assured dies by suicide or if death occurs either directly or indirectly from or through insurrection, invasion or war, or any act incidental thereto; or
 - c. There is no insurance coverage under this Agreement if any part of the First Modal Premium comprised in any cheque or other instrument is not honoured when presented for payment; or
 - d. No one is authorized to waive or modify any of the provision of this Agreement.

BY SIGNING BELOW YOU CONFIRM THAT YOU HAVE READ THIS AGREEMENT AND DECLARE THAT YOU UNDERSTAND AND AGREE TO THE ABOVE TERMS ON WHICH THE TEMPORARY INSURANCE IS ISSUED.

Signed by or Left Thumb Impression of the Proposer (individual) or signed on behalf of the Proposer (where the Proposer is a Legal Entity) (If Proposer is a Legal Entity, affix the official stamp)	Date:	
Signature or Left Thumb Impression of the Proposed Annuitant and / or Proposed Life Assured	Date:	
Signature of Authorised Agent of Guardian Life of the Caribbean Limited by Authorised Agent	Date:	
Agent’s First Name	Middle Initial	Agent’s Last Name